

22STCV00864 22STCV00864

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DEFENDANT KATHRYN JOANN WRIGHT, M.D.'S MOTION FOR BIFURCATION OF ISSUE OF STATUTE OF LIMITATIONS

Motion filed on May 7, 2026.

MOVING PARTY: Defendant Kathryn Joann Wright, M.D., joined by Defendant Providence Health System - Southern California dba Providence Holy Cross Medical Center

RESPONDING PARTY: Plaintiff Laura Beth Denver

NOTICE: OK.

RELIEF REQUESTED: Wright moves for an order requiring the statute of limitations defense to be tried separately and before any other issue. Providence joins the motion.

RULING: Granted.

BACKGROUND

On January 10, 2022, Laura Beth Denver (Plaintiff) filed a complaint against Defendant Rachel B. Long, M.D., and Does 1 through 20, alleging a single cause of action for medical malpractice. Plaintiff later amended the complaint to substitute Defendant Kathryn Joann Wright, M.D. (Defendant Wright), and Defendant Providence Health System - Southern California dba Providence Holy Cross Medical Center (Defendant Providence) for Doe defendants.

Defendant Wright filed this motion on May 7, 2026. Defendant Providence filed a joinder on May 14, 2026. Plaintiff filed an opposition on June 2, 2026, supported by a concurrently filed request for judicial notice. Defendant Wright replied on June 22, 2026.

DISCUSSION

Code of Civil Procedure section 597.5 provides that, in an action against a physician or surgeon, registered nurse, or licensed hospital as the employer of such a person, based on professional negligence, if the answer pleads that the action is barred by the statute of limitations and a party moves for a separate trial, "the issues raised thereby must be tried separately and before any other issues in the case are tried." (Code Civ. Proc., § 597.5.) "The language of section 597.5 is mandatory." (Kelemen v. Superior Court (1982) 136 Cal.App.3d 861, 864.) The Court has no discretion to deny a proper motion once the statutory conditions are met. (County of Kern v. Superior Court (1978) 82 Cal.App.3d 396, 399-400; Kelemen, supra, 136 Cal.App.3d at p. 864.)

Here, the statutory conditions are met. Plaintiff sues for medical malpractice. Defendant Wright is a physician sued for alleged professional negligence, and her answer pleads that the claim is barred by Code of Civil Procedure section 340.5. Defendant Providence joins the motion, is sued as the hospital defendant based on alleged professional negligence in Plaintiff's post-operative nursing care, and its answer pleads that the claim is barred by the applicable statute of limitations, including section 340.5. (Opposition, pp. 6, 9.) The statute of limitations defenses of Defendant Wright and Providence, including Plaintiff's delayed-discovery and relation-back responses to those defenses, must therefore be tried separately and before any other issues.

Plaintiff's delayed-discovery and relation-back arguments are grounds by which Plaintiff seeks to avoid the pleaded limitations defenses. They are therefore part of the limitations issues to be tried first. The Court's prior denials of summary judgment did not decide those issues. Those rulings reflect only that the limitations issues could not be resolved as a matter of law on the summary judgment records presented.

Plaintiff requests that any limitations phase be tried to the Court or, alternatively, to the same jury empaneled for trial. The Court will not order a court trial absent a jury waiver or stipulation by all parties entitled to a jury on those issues.

Absent such a waiver or stipulation, the limitations phase will be tried first to the jury. If Plaintiff prevails in the limitations phase as to one or both moving defendants, the same jury will proceed to the remaining issues as to the defendants remaining in the case, unless the Court orders otherwise.

Plaintiff's request for judicial notice is denied as unnecessary.

CONCLUSION

Defendant Kathryn Joann Wright, M.D.'s Motion for Bifurcation of Issue of Statute of Limitations, as joined by Defendant Providence Health System - Southern California dba Providence Holy Cross Medical Center, is GRANTED.

The Court has reviewed Defendant's Ex Parte Application to

Continue Trial or, in the Alternative, for an Order Shortening Time.

Pursuant to Code of Civil Procedure section 166, subdivision

(a), the Court determines that oral argument is unnecessary and rules without hearing as follows:

The Court declines to determine Defendant's request for a trial continuance on the present ex parte application. Although the application identifies several circumstances that may be relevant to a determination of good cause under California Rules of Court, rule 3.1332, the Court concludes that the interests of justice, due process, and the development of a complete evidentiary record are best served by permitting all parties an opportunity to fully brief the factors governing trial continuances under Rule 3.1332 before the Court determines whether good cause exists.

The Court further observes that trial continuances are disfavored and may be granted only upon an affirmative showing of good cause.

Given the proximity of the Final Status Conference and trial, the Court finds it appropriate to resolve the request on an expedited schedule while affording all parties a meaningful opportunity to be heard.

Accordingly, the Court exercises its discretion to treat the

Ex Parte Application as a Motion to Continue Trial and orders that the motion be heard on shortened time.

IT IS HEREBY ORDERED:

Hearing.

The Motion to Continue Trial is specially set for hearing on July 14, 2026, at 8:30 a.m. in Department F-46.

Moving

Papers. Defendant's Ex Parte Application and all supporting papers previously filed shall be deemed the moving papers.

Supplemental

Moving Papers. Defendant may file and serve supplemental declarations, documentary evidence, and points and authorities no later than June 30, 2026. Any supplemental filing shall be limited to matters relevant to the requested continuance and the factors set forth in California Rules of Court, rule 3.1332.

Opposition.

Any opposition shall be filed and served no later than July 7, 2026.

Reply.

Any reply shall be filed and served no later than July 9, 2026.

Rule

3.1332 Factors. All parties shall specifically address each applicable factor identified in California Rules of Court, rule 3.1332, including, but not limited to:

a. The nature of the asserted good

cause;

b. The diligence exercised in

seeking the continuance;

c. Whether the circumstances

giving rise to the request were reasonably foreseeable;

d. The prejudice, if any, that

would result from granting or denying the requested continuance;

e. The availability of reasonable

alternatives to a continuance;

f. The status of trial preparation

and the impact of a continuance upon the orderly administration of justice; and

g. Any other factor identified in

Rule 3.1332(d) that the parties contend is relevant.

Diligence.

In addition to addressing the foregoing factors, each party shall identify

the date on which each asserted ground for continuance first became known,

the person or persons to whom it first became known, the actions taken

after learning of those circumstances, and explain why the request for

continuance could not reasonably have been presented to the Court at an

earlier time despite the exercise of reasonable diligence.

No

Determination on Merits. The Court makes no finding at this time that good cause exists or does not exist to continue the trial. The sole purpose of this Order is to permit the request to be determined upon a fully developed factual and legal record after all interested parties have had an opportunity to be heard.

Existing

Dates Remain. The Final Status Conference currently set for July 24, 2026, and the trial currently set for August 3, 2026, shall remain on calendar unless otherwise ordered following the hearing on the Motion to Continue Trial.

Notice.

The Court orders the moving party to give notice of this ruling and to promptly serve this Minute Order on all parties and file proof of service.

The clerk is directed to give notice of this minute order.